



Order under Section 30 Residential Tenancies Act, 2006

Citation: Gangadhar v Ahmed, 2025 ONLTB 94386

Date: 2025-12-18

File Number: LTB-T-019187-25

In the matter of: Main floor, 2 0 Cicerella Crescent
East Yor, Scarborough ON M1K5B5

Between: Sai Prakash Gangadhar
Sanjay Gangadhar
Nagaraj Gangadhar
Bhagya Gangadhar

Tenants

and

Rinkee Ahmed

Landlord

Sai Prakash Gangadhar, Sanjay Gangadhar, Nagaraj Gangadhar and Bhagya Gangadhar (the 'Tenants') applied for an order determining that Rinkee Ahmed (the 'Landlord') failed to meet the Landlord's maintenance obligations under the *Residential Tenancies Act, 2006* (the 'Act') or failed to comply with health, safety, housing or maintenance standards.

An Adjudicative Case Conference ('ACC') was heard by videoconference on November 26, 2025.

Only the Tenants' Legal Representative, Caleesis Telesh, and the Tenants, Sai Prakash Gangadhar and Bhagya Gangadhar ('BG'), attended the ACC.

As of 2:39pm, the Landlord was not present or represented at the ACC although properly served with notice of this ACC by the LTB. There was no record of a request to adjourn the ACC. As a result, the ACC proceeded with only the Tenants' evidence.

Determinations:

1. As explained below, the Tenants did not prove a balance of probabilities the allegations contained in the application. Therefore, the application is dismissed.

2. The Tenant, BG, testified that he first moved into the rental unit on February 2, 2025. He testified that upon arriving at the rental unit, he noticed that there were dead cockroaches all over the floor and he saw a few roaming. He testified that the unit was also very dirty,

File Number: LTB-T-019187-25

even though the Landlord had told them she had cleaned it. He called the Landlord and notified her immediately and she asked for 5 days to remedy the situation.

3. He testified that he returned on February 6, 2025 and the condition was the same. He testified that he stayed there for 3 days although he did not have proper furniture and in one instance, a cockroach crawled into his hair. The Landlord told him she couldn't do anything about it. He testified that he followed up with the Landlord repeatedly after that, but he received no response.
4. BG testified that because of the condition of the unit, he returned keys to the Landlord on February 21, 2025 as his family could not live in the unit in its condition.
5. Pursuant to subsection 20(1) of the Act:

A landlord is responsible for providing and maintaining a residential complex, including the rental units in it, in a good state of repair and fit for habitation and for complying with health, safety, housing and maintenance standards.

6. While a landlord is required to maintain the rental unit in a good state of repair, there is nothing in the Act that requires a landlord to provide a clean unit. In fact, it is the Tenants' responsibility to maintain the rental unit in a reasonable state of the cleanliness. I therefore cannot find that the Landlord breached the Act by not providing a clean unit to the Tenants at the commencement of the tenancy.
7. With respect to the cockroach infestation issue, based on the uncontested evidence before me, I find, on a balance of probabilities, that the Landlord failed to meet the Landlord's obligations under subsection 20(1) of the Act to maintain the rental unit in relation to the cockroach infestation. There was no evidence that the Landlord made any attempts to treat the infestation as when the Tenant returned after the Landlord asked for 5 days to deal with the situation, the condition had not changed. I find this response to be inadequate.
8. In the application, the only remedies sought by the Tenants are a return of all rent and deposits paid to the Landlord as well as an order terminating the Tenants' tenancy. There are certain situations in which the Board has jurisdiction to order the return of a rent deposit or a return of rent and those are more appropriately claimed on a T1 application. The Tenant has not filed a T1 application and therefore I do not have jurisdiction to award these remedies under the current application.

9. However, being that the Tenants are claiming return of the rent paid for the duration of time for which they did take possession of the rental unit, I find that it is sufficiently clear that what the Tenants actually seek is a rent abatement for the Landlord's breach of the Act. I am satisfied that the application is clear as to what remedy is being sought and there is therefore no prejudice to the Landlord in considering this remedy.
10. The Tenants sought a 100% rent abatement for the cockroach issue. I find this amount to be excessive given the lack of any evidence showing the Tenants are more sensitive to the presence of cockroaches than the average tenant or that the severity of the infestation was

File Number: LTB-T-019187-25

more excessive than most other cases before the Board. Based on my knowledge of similar cases before the Board, I believe a reasonable abatement of rent paid for the time period the Tenants had possession of the rental unit is 30%.

11. Therefore, I am satisfied the Tenants are entitled to a 30% rent abatement from February 2, 2025 to February 21, 2025, when the Tenants returned possession of the rental unit to the Landlord, which totals \$2,038.40.
12. The Tenants also requested termination of the tenancy on February 21, 2025 due to the cockroach issues. I am not satisfied that the Tenants are entitled to this remedy. The Tenants sought termination of the tenancy within 3 weeks of advising the Landlord of the issue. Based on the lack of evidence before the Board on the severity of the infestation, it would not be reasonable or necessary to terminate the tenancy without the Landlord being provided an opportunity to fully address the issue. Pest infestations are not resolved overnight and often can take several treatments before seeing a full resolution.
13. In my view, the Tenants were not forced to vacate the rental unit due to a breach of the Landlord's maintenance obligations, rather, I find that the Tenants chose to vacate the rental unit as the evidence did not support a severe infestation that could not reasonably be treated.

It is ordered that:

1. The total amount the Landlord shall pay the Tenants is \$2,038.40. This amount represents:
 - \$2,038.40 for a rent abatement.
 - \$48.00 for the cost of filing the application.
2. The Landlord shall pay the Tenants the full amount owing by December 29, 2025.

3. If the Landlord does not pay the Tenants the full amount owing by December 29, 2025, the Landlord will owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.
4. The Tenants have the right, at any time, to collect the full amount owing or any balance outstanding under this order.

December 18, 2025

Date Issued

Candace Aboussafy

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.